



Notification Waiver Determination

PRIME Asia – Stockland Sienna Wood and Providence

Acquisition	Prime Property Fund Asia Limited Partnership (PRIME Asia) applied for a notification waiver in respect of its proposed acquisition of 49.9% of the units in the Stockland Sienna Wood Retail No. 2 Trust (Sienna Wood Trust) and 70.1% of the units in the Stockland Providence Retail Trust (Providence Trust), as described in the transaction documents provided as part of the application (the Acquisition). The Acquisition is taking place as part of arrangements pursuant to which PRIME Asia as an institutional investor will provide capital for the development, operation and management of retail town centre assets (including relevantly those located in Sienna Wood in Western Australia and Providence in Queensland) by Stockland Corporation Ltd and Stockland Trust (Stockland).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	2 June 2026

Parties to the Acquisition	The acquirer, PRIME Asia, is a fund advised by Morgan Stanley Real Estate Investing. It is an open-ended commingled real estate investment fund with an investment mandate to acquire institutional-quality real estate investments across the Asia region, including in Australia. The Sienna Wood and Providence sites are retail town centres within master planned communities located in South East Perth, Western Australia, and South West Brisbane, Queensland, respectively, that are currently indirectly wholly owned by Stockland.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and certain publicly available information, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular, there is no horizontal overlap or vertical relationship between any existing interests of PRIME Asia (and its connected entities) in the local regions and the Sienna Wood and Providence retail town centres.

	In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**